

26NWCV00337 26NWCV00337

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-01

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Case Number: 26NWCV00337 Hearing Date: July 1, 2026 Dept: C

REEVES vs WHITTIER

FIRST DAY COALITION, ET AL.

CASE NO.: 26NWCV00337

HEARING: 7/1/2026 @ 9:30 AM

#16

TENTATIVE ORDER

I.

Defendant County of Los Angeles's motion

to declare Plaintiff Michael Reeves a vexatious litigant is GRANTED. Defendant's request for Plaintiff to furnish security is GRANTED in the reduced amount of \$1,000.00. Plaintiff is ordered to deposit security with the Court within 30 days. Defendant's request for a prefiling order is GRANTED.

II.

Plaintiff's Motion for Sanctions and
Motion to Strike are WITHDRAWN.

Moving party to give notice.

Defendant County of Los Angeles (Defendant) moves this Court for an order declaring Plaintiff Michael Reeves (Plaintiff) a vexatious litigant and requiring Plaintiff to post security as a condition of maintaining the present litigation.

BACKGROUND

Plaintiff alleges that this action arises from Defendants' coordinated and systemic failure to provide lawful, nondiscriminatory access to shelter, advocacy, and reasonable accommodations to a disabled, medically vulnerable individual who sought help after relocation to Whittier, California. (Compl., ¶ 1.) Plaintiff alleges that on or about August 5, 2025, Plaintiff contacted 2-1-1 and Adult Protective Services (APS) seeking emergency assistance. (Compl., ¶ 14.) Plaintiff was referred to Volunteers of America and then directed—through coordination and referral—to Whittier First Day Coalition as the appropriate provider for shelter advocacy, intake, and related assistance in Whittier. Ultimately, Plaintiff alleges to have been denied shelter access, denied reasonable accommodations, and provided only minimal, ineffective assistance. (Compl., ¶ 21.) Despite knowledge of Plaintiff's disabilities and risks, Defendants failed to provide safe alternatives or transportation to available resources. (Compl., ¶ 22.) Plaintiff was left sleeping in his vehicle and on public streets immediately adjacent to the shelter for an extended period, without food or water.

Based thereon Plaintiff alleges causes of action for:

1.
Violation of Unruh Civil Rights Act;
2.
Disability Discrimination and Failure to Accommodate;
3.
Negligence;
4.
Negligent Supervision and Failure to Train
(County);
5.
Declaratory and Injunctive Relief.

On June 9, 2026, Plaintiff filed a First Amended Complaint. However, this case was stayed as of May 27, 2026 pursuant to Code Civil Proc., § 391.6. Section 391.6 provides: "Except as provided in subdivision (b) of Section 391.3, when a motion pursuant to Section 391.1 is filed prior to trial the litigation is stayed, and the moving defendant need not plead, until 10 days after the motion shall have been denied, or if granted, until 10 days after the required security has been furnished and the moving defendant given written notice thereof..."

REQUEST FOR JUDICIAL NOTICE

Defendant's Request for Judicial Notice is GRANTED.

LEGAL STANDARD

A vexatious litigant is "a person who has, while acting in propria persona, initiated or prosecuted numerous meritless litigations, relitigated or attempted to relitigate matters previously determined against him or her, repeatedly pursued unmeritorious or frivolous tactics in litigation, or who has previously been declared a vexatious litigant in a related action." (Shalant v. Girardi (2011) 51 Cal.4th 1164, 1169-70; Code Civ. Proc. § 391 subd. (b).)

DISCUSSION

Defendant County of Los Angeles (Defendant) moves this Court for an order declaring Plaintiff Michael Reeves (Plaintiff) a vexatious litigant and requiring Plaintiff to post security as a condition of maintaining the present litigation.

Vexatious Litigant

Section 391, subdivision (b) defines several categories of vexatious litigants. Under the first category, a litigant is vexatious if they have filed, while self-represented, at least five qualifying litigations within the past seven years that were "finally determined adversely" to them. (Code Civ. Proc., § 391, subd. (b)(1) [excluding actions in small claims court].) A litigation is finally determined adversely to a plaintiff within the meaning of the vexatious litigant law if they do not win the action or proceeding they began, including cases that are voluntarily dismissed by a plaintiff, and cases

that are involuntarily dismissed by the court. (See *Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406–407; *Karnazes v. The Lauriedale Homeowners Assn.* (2023) 96 Cal.App.5th 275, 292; *Fink v. Shemtov* (2010) 180 Cal.App.4th 1160, 1172, 1173–74.)

Defendant argues that Plaintiff is a vexatious litigant because within the last seven years Plaintiff has commenced at least six litigations in pro per that have been finally determined adversely to him. “Litigation” means any civil action or proceeding commenced, maintained, or pending in any state, or federal court. (CCP § 391, subd. (a).) The cases are as follows:

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Case No. 1: *Reeves v. United States of America et al.* S.D.N.Y. (2026) — Plaintiff brought §§1983, APA, and FOIA claims alleging non-stop surveillance. Dismissed on sovereign immunity, lack of subject matter jurisdiction, and failure to state a claim. Clerk’s Judgment entered.

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Case No. 2: *Reeves v. City of New York et al.* S.D.N.Y. (2026) — §§1983 civil rights action alleging unlawful arrest by NYPD officers. Plaintiff filed notice of voluntary withdrawal. Court entered Order of Dismissal.

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Case No. 3: *Reeves v. Stage 32, LLC* C.D. Cal. (2026) — Plaintiff alleged wrongful deplatforming. Dismissed without prejudice; plaintiff conceded both parties are California citizens and no federal claim presented.

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Case No. 4: *Reeves v. Amazon.com, Inc. et al.* C.D. Cal.(2026) — Plaintiff alleged Ring Neighbors app allowed third parties to harass him. Dismissed with prejudice; claims barred by Communications Decency Act. Court noted plaintiff had filed “forty lawsuits in no fewer than nine jurisdictions” and that similar surveillance allegations had been “rejected as frivolous.”

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Case No. 5: Reeves v. Department of Homeland

Security et al. C.D. Cal.(2025) — APA and Fifth Amendment action to limit enforcement of 1997 immigration removal order. Dismissed without prejudice for lack of subject matter jurisdiction. Court again cited plaintiff's "forty lawsuits."

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Case No. 6: Reeves v. Federal Aviation

Administration et al. C.D. Cal. (2025)— Mandamus/APA action re FAA non-response to 100+ complaints. Dismissed as moot. Court noted surveillance allegations "repeatedly rejected" as "wholly insubstantial" and "obviously frivolous."

In opposition, Plaintiff argues that instead of addressing the merits, Defendant attempts to distract the Court by compiling unrelated cases from separate jurisdictions involving entirely different facts, defendants, and legal theories. This lawsuit specifically concerns allegations involving homelessness services, disability accommodations, abandonment, and failures involving Los Angeles County and associated entities. The existence of multiple lawsuits alone does not establish vexatiousness. Moreover, Plaintiff states that in 2014 Plaintiff successfully litigated an immigration habeas corpus matter in New York that resulted in release on immigration bond following prolonged detention. Plaintiff has successfully resolved multiple disputes involving sophisticated institutional defendants and insurers. The cases are as follows:

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Reeves v. Citibank (2023), involving allegations of mistreatment, denial of access to funds, "humiliation, and resulting emotional and financial harm;

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Reeves v. Uber (2021), involving disputes arising during a period of housing instability and hardship;

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A New Jersey insurance-related settlement involving personal injury claims;

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A 2026 settlement involving one of the

defendants in *Reeves v. Meta Platforms*.

The Court finds Defendant has made a sufficient showing that Plaintiff is vexatious under Code of Civil Procedure section 391.7 subd. (b)(1). Although Plaintiff argues that the existence of multiple lawsuits alone does not establish vexatiousness given each case arose from separate alleged injuries and separate underlying facts, section 391.7(b)(1) does not require each of the cases arise from the same injuries or facts. Indeed, that requirement can be found under section 391.7(b)(2). Defendant does not move to declare Plaintiff vexatious based on those grounds. Defendant identified six cases within the preceding seven-year period that were finally determined adversely to Plaintiff, all filed in propria persona. (Motion, pp. 8–10; RJN, Exhs. 1 - 14.) In opposition Plaintiff fails to challenge these cases. Plaintiff does not argue that any case falls outside the seven-year window; was not filed in pro per; or was not final within the meaning of Code of Civil Procedure section 391, subdivision (b)(1). Accordingly, Plaintiff is a “vexatious litigant” within the meaning of Code of Civil Procedure section 391 subd. (b)(1).

Security

Under Code of Civil Procedure section 391.1, in any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

Here, Defendant sufficiently demonstrates there is no reasonable probability Plaintiff will prevail on the merits. As to the first cause of action, Plaintiff fails to state a cause of action against Defendant. First, contrary to Plaintiff’s argument in opposition, the Complaint fails to allege discrimination based on disability. As to discriminatory conduct, Plaintiff alleges that “[d]espite knowledge of Plaintiff’s disabilities and risks, Defendants failed to provide safe alternatives or transportation to available resources.” (Compl., ¶ 22.) This allegation fails to demonstrate Defendant’s particular knowledge of Plaintiff’s disability.

"A complaint against a public entity "must allege with particularity every fact essential to the existence of statutory liability." (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792.) Second, there are no facts that sufficiently allege that Defendant was operating as a business establishment even if all of Plaintiff's allegations are accepted as true. As to Defendant, Plaintiff alleges that it "oversees, funds, authorizes, contracts with, or otherwise exercises control over homelessness services and providers in Whittier, including WEFDC, and is responsible for policies, supervision, and compliance." (Compl., ¶ 6.) There are no allegations that Defendant was operating as a business establishment as nothing in the plain language of the Unruh Civil Rights Act makes its provisions applicable to the alleged actions of funding and/or overseeing a non-profit organization. (Harrison v. City of Rancho Mirage (2015) 243 Cal.App.4th 162.)

As to the second cause of action for Disability Discrimination and Failure to Accommodate, there are no specific allegations that Defendant's alleged involvement with the relevant non-profit was a result of state funding; therefore, Defendant is not subject to Government Code section 11135. (See San Francisco Taxi Coalition v. City and County of San Francisco (2020) C.A.9 (Cal.), 979 F.3d 1220; Brennon B. v. Superior Court (2022) 13 Cal.5th 662, 672, fn. 5.)

As to the third and fourth causes of action for Negligence and Negligent Supervision, respectively, Plaintiff fails to state which statute provides the exclusive statutory basis for public entity liability for the alleged discrimination faced by Plaintiff.

Based upon the foregoing, the Court finds that Defendant has sufficiently demonstrated there is no reasonable probability Plaintiff will prevail on the merits.

Under Code of Civil Procedure section 391.3, once the Court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that he will prevail against the moving defendant, the Court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix.

Here, Counsel for Defendant

declares that counsel's reduced hourly rate for government employee defendants is \$350 per hour. (Brenner Decl., ¶15.) Counsel estimates that attorney's fees required to bring a motion for summary judgment in this action will be approximately \$30,000.00, including the cost for Plaintiff's deposition. (Ibid.) Plaintiff does not contest the amount of security requested by Defendant. However, the Court notes that Plaintiff alleges to be unhoused and disabled, therefore, the Court shall order a reduced security.

Accordingly, Plaintiff is ordered to furnish security in the amount of \$1,000.00 within 30 days. This action remains STAYED pending Plaintiff's deposit of security with the Court. (CCP § 391.6.)

Prefiling Order

The Court issues a prefiling order pursuant to CCP § 391.7. Section 391.7 provides: "...the court may, on its own motion or the motion of any party, enter a prefiling order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be punished as a contempt of court."

Motions Withdrawn by Plaintiff

By notice filed on June 26, 2026, Plaintiff withdraws the Motion for Sanctions and the Motion to Strike filed on May 26, 2026.